

A case management conference (for status check) is set for December 4, 2026, at 8:30 a.m. All intervening dates are vacated. Plaintiff may seek to resume litigation in the meantime if need be.

12. 9:00 AM CASE NUMBER: C25-03530

CASE NAME: JOHN RUBIO VS. SUSANNE KIM

HEARING ON DEMURRER TO: COMPLAINT ADVANCED 4/1/2026 PER ORAL STIPULATION AND REQUEST.

FILED BY: KIM, SUSANNE SARECKI

TENTATIVE RULING:

Before the Court is a demurrer filed by defendants Mount Diablo Unified School District and Susanne Starecki Kim, that challenges all 14 of the causes of action alleged in the complaint of plaintiff John Rubio. Defendants argue that none of the claims asserted in the Complaint states sufficient facts to constitute causes of action.

For the reasons set forth below, the hearing on the Demurrer is continued until **Thursday, July 30, 2026, at 9:00 a.m., in Department 10**. The parties shall meet and confer **by July 9, 2026**, and Defendants shall file the required “meet and confer” declaration showing compliance with Code of Civil Procedure section 430.41(a), **by July 16, 2026**. The Court expects that by July 16, 2026, the parties will either: (1) take the demurrer off calendar due to an amended complaint being filed; (2) report impasse on all issues; or (3) report they have resolved some issues but ask for a ruling on the rest.

Code of Civil Procedure section 430.41(a) requires the party intending to file a demurrer to meet and confer with the party whose pleading is being challenged “**in person, by telephone, or by video conference**” prior to filing the demurrer. In addition to this, a party may satisfy this requirement when the party who filed the pleading subject to the motion “failed to respond to the meet and confer request of the moving party....” (*Ibid.*) The moving party must then file a declaration with the demurrer attesting to the party’s compliance with the meet and confer requirement. (*Ibid.*) Courts have wide discretion to continue hearings to order further meet and confer efforts to take place. (*Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3 [“Of course, trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.”].)

The David R. Mishook Declaration does not state the parties met and conferred in the manner required by the Code of Civil Procedure. (Mishook Decl., ¶¶ 2-3.) Maribel S. Medina’s declaration confirms it. (Medina Decl., ¶ 7 [“Prior to filing the demurrer, Defendants did not attempt to meet and confer with me (or with Plaintiff) in person, by telephone, or by video conference, and Defendants did not attempt to schedule such a conference.”].) Moreover, it is apparent on the face of the demurrer that it is very much of a character that would very likely have benefited from a fruitful meet-and-confer process. That’s exactly what the statute calls for – and exactly what wasn’t done here.

The hearing is therefore continued for the parties to meet and confer pursuant to the statute.

13. 9:00 AM CASE NUMBER: C25-03770
CASE NAME: SHIELA WILEY VS. KAISER FOUNDATION HEALTH PLAN INC.
***MOTION/PETITION TO COMPEL ARBITRATION PETITION TO VACATE CONTRACTUAL**
ARBITRATION AWARD
FILED BY: WILEY, SHIELA
TENTATIVE RULING:

Before the Court is Petitioner Sheila Wiley's Petition to Vacate Arbitration Award. The Petition is **denied**.

Factual and Procedural Background

The Petition was filed on December 11, 2025. It moves to vacate the underlying arbitration award on three grounds: (1) the misconduct of the arbitrator substantially prejudiced petitioner's rights; (2) the arbitrator exceeded his or her authority, and the award cannot be fairly corrected; and (3) the arbitrator unfairly refused to postpone the hearing or to hear evidence useful to settle the dispute. The Petition attaches "Order No. 5" (the order Petitioner disputes), and attachment 10c2 (an outline of the 'facts supporting the grounds for vacating the award.')

The Kaiser Respondents filed a "Response to Petitioner Wiley's Petition to Vacate Arbitration Award and Request to Dismiss Petition for Failure to Comply with Code Civ. Proc. §1285" on January 13, 2026. On January 23, 2026, Petitioner filed her "Response to Respondent's Request to Dismiss Petition for Failure to Comply with Code Civ. Proc. § 1285," which included five separate parts totaling 156 pages. Thereafter, on January 30, 2026, the Kaiser Respondents then filed "Respondent's Memorandum in Opposition to Claimant's Petition to Vacate Arbitration Award," along with a declaration of counsel in support. On February 6, 2026, Petitioner then filed her "Reply to Respondents' Memorandum in Opposition to Claimant's Petition to Vacate Arbitration Award," which consisted of four parts totaling 136 pages. The Kaiser Respondents then filed, on February 17, 2026, "Respondents' Objections to Claimant's Reply Memorandum and Evidence." Not to be outdone, Petitioner then filed, on February 20, 2026, "Claimant's Reply to Respondents' Objections to Claimant's Reply Memorandum and Evidence."

Procedural Problems with Papers

"An application for an order is a motion." (Code Civ. Proc. § 1003.) As the Petition seeks an order, it is considered a 'motion.' A 'motion' consists of a notice of hearing, the motion itself, and a memorandum in support. (Cal. R. Ct. 3.1112(a).) "Other papers may be filed in support of a motion, including declarations, exhibits, appendices, and other documents or pleadings." (Cal. R. Ct. 3.1112(b).)

The only papers accepted related to a motion are the initial motion, an opposition, and a reply (along with supporting documents for each). (Code Civ. Proc. § 1005(b).) There is no provision in the Code of Civil Procedure, generally, for the filing of a 'sur-reply' (no matter how titled), nor for a second opposition and reply. The decision whether to consider a sur-reply is within the discretion of the trial court. (*Guimei v. General Electric Co.* (2009) 172 Cal.App.4th 689, 704.)